

WRITTEN SUBMISSIONS · 20 JUN 2001

Writ of summons — Grasse Regional Court (TGI)

TYPE

Pleadings / procedural document

COURT

The Grasse Regional Court (TGI)

DATE

20 Jun 2001

PARTIES

McDonald's France v. the Collorafi family

SUMMARY SHEET

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Overview: writ of summons served by a bailiff at the request of McDonald's France before the Grasse Regional Court (TGI), directed against Bernard and Olga Collorafi and their sons Sébastien and Olivier Collorafi.

Key points

The writ relies on a judgment of the Paris Court of Appeal of 8 March 2000, presented as making McDonald's France a creditor. The document recalls the joint and several orders against Mr Collorafi together with the companies SEBOL, B et O and Les Pins in respect of unpaid fees, as well as the sums payable by McDonald's in respect of tangible fixed assets and damages. McDonald's asks in particular:

- to validate the protective attachment of company shares nos. 6001 to 12000 carried out on 22 May 2001 pursuant to an order of 10 May 2001 of the enforcement judge;
- to convert it into an attachment for sale and to order provisional enforcement;
- a sum of 20,000 F under article 700 of the NCPC, plus costs.

Also referred to are the SCI COLLO, registrations of mortgages and a promise of sale of 30 March 2001.

Significance

This document illustrates the forced enforcement phase of the 2000 judgment, with McDonald's seeking to recover its claims from the assets of Mr and Mrs Collorafi and their sons.

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Source: bernardcollorafi.org/en/documents/writ-of-summons-grasse-regional-court-mcdonalds-collorafi-share-seizure-2001/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.